



B2B LIMITED WARRANTY

TERMS & CONDITIONS

BUSINESS & COMMERCIAL

Pulse Pilates Sdn. Bhd. (1569742-U)
Malaysia & Singapore

These Limited Warranty Terms & Conditions ("Warranty") apply to Pilates equipment and related products ("Product" or "Equipment") supplied by **Pulse Pilates Sdn. Bhd. (1569742-U) ("Pulse")** to a company, partnership, studio, gym, fitness centre, healthcare facility, educational institution, hospitality operator, reseller or other person acquiring the Equipment primarily for business, commercial, professional, institutional or income-generating purposes ("Customer").

This Warranty forms part of the agreement between Pulse and the Customer and must be read together with the applicable quotation, invoice, sales order, product specifications, operating instructions, maintenance requirements and any separately agreed commercial terms.

By placing an order for, accepting delivery of or using the Equipment, the Customer acknowledges that the Equipment is intended to be operated and maintained by appropriately trained persons in accordance with these Terms.

1. SCOPE AND APPLICATION

This Warranty applies where the Equipment was purchased directly from Pulse, delivered to an address in Malaysia or Singapore and acquired primarily for business, commercial, professional, institutional or income-generating use.

Equipment purchased for personal, domestic or household use on Pulse consumer terms is supplied under Pulse's separate B2C Limited Warranty Terms. Equipment delivered outside Malaysia or Singapore is supplied under the written terms notified at the time of sale.

Where there is any doubt as to which terms apply, the terms identified on the invoice for the relevant Equipment prevail.

2. WARRANTY PERIOD

Subject to the terms, exclusions and limitations set out below, Pulse provides the following limited warranty commencing on the date of delivery:

Structural Components - Six (6) Months

Pulse warrants the principal load-bearing structural components of the Equipment against defects in materials or workmanship for a period of six (6) months.

Structural components may include, where applicable, the main frame, structural rails and other principal load-bearing components forming part of the Equipment.

A defect, failure, misalignment or deterioration affecting an individual replaceable, adjustable, serviceable or wear component does **not** automatically constitute a structural defect or entitle the Customer to replacement of the entire Equipment.

Springs - Three (3) Months

Springs supplied with the Equipment are warranted against manufacturing defects for a period of three (3) months.

Changes in spring tension, resistance, appearance or performance caused by frequency or intensity of use, repeated loading, user weight, commercial class volumes, environmental conditions, maintenance practices, storage conditions or normal material fatigue are not manufacturing defects.

Wear, Service and Consumable Components

Unless Pulse expressly agrees otherwise in writing, ropes, straps, loops, handles, pulleys, wheels, rollers, bearings, clips, hooks, knobs, pins, cables, foot bars, shoulder rests, upholstery, padding, covers, fasteners and similar replaceable or serviceable components are wear, service or consumable components.

Normal wear, stretching, compression, loosening, surface deterioration or loss of performance affecting such components is not covered by this Warranty.

Where Pulse determines that a wear, service or consumable component failed prematurely solely because of a manufacturing defect, Pulse may elect to repair or replace the affected component.

Ex-Display, Clearance and Converted Units

Equipment sold as ex-display, showroom, clearance, sample or previously used stock, and Equipment supplied on conversion from a rental arrangement, is warranted only to the extent expressly stated in writing on the invoice for that Equipment. Where the invoice states no warranty period, coverage will be determined by the written terms of sale and applicable law.

Such Equipment may show cosmetic wear consistent with prior display or use, and the cosmetic reporting provisions of this Warranty do not apply to that pre-existing wear.

When the Warranty Period Starts

The warranty period runs from the date the Equipment is delivered to the Customer. Where delivery is deferred at the Customer's request, the warranty period runs from the date Pulse first made the Equipment available for delivery.

3. COMMERCIAL USE AND HEAVIER USAGE

The Customer acknowledges that Equipment used in a studio, gym or other commercial environment may be operated:

- by multiple users;
- for extended periods;
- in consecutive classes or sessions;
- under varying loads and resistance settings;
- by users with different levels of experience;
- at a substantially greater frequency than equipment used in a domestic environment; and
- under the control or supervision of the Customer rather than Pulse.

Commercial usage may materially accelerate ordinary wear, fatigue and the frequency with which components require adjustment, servicing or replacement.

Accelerated wear arising from the volume, frequency, intensity or conditions of commercial use is not, by itself, evidence of a manufacturing or structural defect.

The warranty periods stated in these Terms are maximum periods and are not representations regarding the service life of components exposed to intensive or unusually frequent commercial use.

4. COSMETIC AND DELIVERY INSPECTION

The Customer must inspect the Equipment immediately upon delivery and, where installation is included, upon completion of installation.

Any shortage, incorrect item or visible transportation, delivery or cosmetic damage, including significant scratches, dents, tears or finish damage, must be recorded on the delivery documentation and reported to Pulse with clear photographs or videos within **forty-eight (48) hours of delivery**.

Cosmetic or aesthetic conditions reported after this period will not be treated as warranty defects unless Pulse determines that the condition was not reasonably discoverable during the required inspection.

Minor cosmetic imperfections that do not materially affect the safe operation or intended functionality of the Equipment are not structural or manufacturing defects.

5. HANDCRAFTED PRODUCTS AND NATURAL MATERIALS

Certain Pulse products are manufactured, assembled or finished by hand. Certain Products may incorporate natural materials, including maple wood and other natural timber materials.

The Customer acknowledges that natural and handcrafted materials are inherently variable.

Variations including, without limitation:

- wood grain;
- colour and tone;
- knots and natural markings;
- mineral streaks;
- texture;
- minor dimensional variations;
- differences between individual pieces of timber;
- minor variations in handcrafted joints or finishing; and
- gradual changes in colour or appearance caused by age, light, heat, humidity or environmental conditions

are natural characteristics of the materials and manufacturing process and do not, by themselves, constitute defects.

Products incorporating natural materials are not represented as being visually identical to display units, photographs, samples, previously supplied units or other units of the same model.

6. INSTALLATION AND SITE CONDITIONS

The Customer is responsible for ensuring that the intended installation site is suitable for the Equipment, including adequate floor strength, levelness, clearance, ventilation, access and environmental conditions.

Unless Pulse expressly agrees to provide installation in writing, the Customer is responsible for correct assembly, installation, levelling and initial adjustment.

Where Pulse or its authorised representative installs the Equipment, the Customer must inspect and accept the installation upon completion and must not subsequently relocate, disassemble, alter or reinstall the Equipment except in accordance with Pulse's instructions.

Damage or malfunction arising from unsuitable flooring, an unsuitable site, incorrect installation, relocation, dismantling, reassembly or adjustment by an unauthorised person is not covered by this Warranty.

7. COMMERCIAL INSPECTION AND MAINTENANCE OBLIGATIONS

The Customer must establish and maintain an inspection and preventive-maintenance programme appropriate to the Equipment's frequency and intensity of use.

At a minimum, the Customer must:

- 1 perform a visual and functional inspection before the first use of each operating day;
- 2 inspect springs, ropes, straps, loops, clips, hooks, pulleys, wheels, bearings, fasteners and moving parts regularly;
- 3 check that adjustable components are correctly positioned and securely engaged before every user;
- 4 clean the Equipment using suitable products and methods;
- 5 tighten, adjust, lubricate or replace components at the intervals recommended by Pulse;
- 6 immediately remove from service any Equipment showing damage, looseness, unusual noise, imbalance, excessive wear or suspected malfunction;
- 7 prevent use until the relevant condition has been properly assessed and rectified; and
- 8 maintain written or electronic records of inspections, maintenance, incidents, repairs and component replacements.

Maintenance, adjustment and replacement of worn components are ordinary operating responsibilities of the Customer and are not included in the purchase price unless expressly agreed otherwise.

Failure to perform or document reasonable inspection and maintenance may invalidate warranty coverage to the extent that such failure caused, accelerated or contributed to the reported condition.

8. OPERATORS, INSTRUCTORS AND END USERS

The Customer is solely responsible for the control, management and supervision of the Equipment at its premises or under its possession.

The Customer must ensure that:

- instructors, trainers, employees and operators are appropriately trained and competent;
- users receive suitable instruction, supervision and safety guidance;
- users are physically suitable for the exercise being performed;
- resistance settings and configurations are appropriate for each user;
- recommended user-weight, loading and operating limitations are observed;
- children and unauthorised persons do not access the Equipment without appropriate supervision;
- each user is checked into and released from the Equipment safely; and
- the Equipment is not used while damaged, excessively worn, incorrectly adjusted or suspected to be unsafe.

Pulse does not supervise the Customer's employees, instructors, contractors, members, patients, guests or other users and is not responsible for the selection, instruction, supervision or conduct of those persons.

9. WHAT IS NOT COVERED

This Warranty does not cover damage, deterioration, malfunction or failure resulting from:

- normal or accelerated commercial wear and tear;
- usage volume, class frequency, consecutive sessions or intensive operation;
- ordinary fatigue, stretching, loosening or deterioration of wear components;
- scratches, scuffs, dents, stains, fading, corrosion or discolouration arising after delivery;

- ordinary deterioration of upholstery, ropes, straps, loops, handles or padding;
- misuse, abuse, negligence or improper handling;
- use contrary to the Equipment's intended purpose;
- incorrect technique or unsafe exercises;
- failure to follow operating, maintenance or safety instructions;
- inadequate inspection, servicing or preventive maintenance;
- continued use after damage, excessive wear or abnormal operation becomes or should reasonably have become apparent;
- incorrect assembly, installation, adjustment, relocation or repair not performed or authorised by Pulse;
- unauthorised modification or alteration;
- use of non-approved parts, accessories, cleaning agents or lubricants;
- exceeding recommended weight, resistance, loading or usage limitations;
- dropping, impact, collision or external force;
- unsuitable flooring or site conditions;
- exposure to excessive moisture, sweat, water, direct sunlight, heat, extreme temperatures or unsuitable environmental conditions;
- corrosion or deterioration caused by sweat, humidity, cleaning chemicals or unsuitable cleaning practices;
- improper storage;
- damage caused by pets, insects, pests or external objects;
- accidental damage, vandalism or deliberate acts;
- removal, alteration or obscuring of a serial number or identifying label;
- use in an environment or for an application not disclosed to or approved by Pulse;
- rental, subleasing, public-access or mobile-event use not disclosed to Pulse before purchase; or
- any condition not attributable to a manufacturing defect existing in the Product.

10. WARRANTY CLAIM PROCEDURE

The Customer must notify Pulse in writing as soon as reasonably practicable after discovering a suspected defect, preferably within seven (7) days, and before the affected Equipment is used again where safety may be compromised. A claim should be notified before the applicable warranty period expires.

Claims may be submitted using the following contact details:

Email: pilatesreformer.my@gmail.com

Telephone: +6018-929 4693

Address: A-30, Level 2, Sentul Point, Puncak Sentul, No. 8 Jalan Sentul Perdana, 51000 Kuala Lumpur

Pulse will acknowledge a warranty claim within five (5) business days of receipt and advise the next steps, including whether an inspection is required.

The Customer must provide:

- 1 the original invoice or other proof of purchase;
- 2 the Equipment model and serial number, where applicable;
- 3 clear photographs and videos showing the reported condition;
- 4 the date on which the condition was first observed;
- 5 details of the Equipment's approximate daily and weekly usage;
- 6 relevant inspection, maintenance and service records;
- 7 details of any incident, relocation, adjustment or repair involving the Equipment; and
- 8 such other information or access as Pulse may reasonably require to assess the claim.

The Customer must preserve the affected Equipment and components and must not dismantle, modify, discard or arrange unauthorised repairs before Pulse has had a reasonable opportunity to inspect or assess the claim.

Failure to provide reasonably requested evidence, maintenance records or access may delay or prevent Pulse from determining the claim.

11. INSPECTION AND DETERMINATION

All warranty claims are subject to inspection and assessment by Pulse or its authorised representative.

Pulse may determine whether the reported condition concerns:

- a manufacturing defect;
- a structural defect;
- a defective replaceable component;
- ordinary or accelerated wear and tear;
- insufficient inspection or maintenance;
- misuse, overloading or improper operation;
- incorrect installation, adjustment or repair;
- a cosmetic or aesthetic matter;
- a natural characteristic of the materials used; or
- another condition excluded from this Warranty.

Where physical inspection is reasonably necessary, the Customer must provide Pulse or its authorised representative with safe and reasonable access to the Equipment during normal business hours.

No statement by an employee, technician, transporter or representative made before completion of Pulse's assessment constitutes acceptance of a warranty claim.

12. REPAIR BEFORE WHOLE-UNIT REPLACEMENT

Where a valid warranty defect can reasonably and safely be rectified by adjustment, repair or replacement of an affected component, Pulse may provide that remedy instead of replacing the entire Equipment.

A defective, worn, misaligned, adjustable, serviceable or replaceable component does not, by itself, entitle the Customer to a new or replacement unit.

Examples include the adjustment, repair or replacement of springs, straps, ropes, pulleys, wheels, rollers, bearings, handles, upholstery, padding, hardware or other serviceable components.

Pulse is not obliged to replace an entire unit where adjustment, repair or component replacement can restore the Equipment to safe and functional operation.

13. WARRANTY REMEDIES

If Pulse confirms a valid warranty claim, Pulse may, at its option:

- adjust the Equipment;
- repair the affected component;
- supply a replacement component of the same or reasonably equivalent type;
- require the Equipment or affected component to be returned for repair;
- provide instructions for installation of a replacement component; or
- where repair or component replacement is not reasonably practicable, provide another remedy agreed in writing by Pulse.

Replacement components may differ slightly in colour, grain, texture, finish, production method or appearance, provided that the difference does not materially impair safe operation or intended functionality.

Pulse may use new, refurbished or functionally equivalent components when carrying out a repair or replacement.

Repair or replacement does not restart or extend the original warranty period. A repaired or replacement component remains covered only for the unexpired portion of the original applicable warranty period.

14. LABOUR, ACCESS, TRANSPORT AND RELATED COSTS

Unless Pulse expressly agrees otherwise in writing, a valid claim covers the adjustment, repair or replacement of the defective component and reasonable standard labour performed at Pulse's nominated service location. On-site attendance, travel and transport are excluded unless Pulse confirms otherwise in writing.

The Customer is responsible for:

- technician travel and attendance charges;
- inspection or diagnostic charges where the claim is not covered;

- dismantling and reassembly costs;
- packing, loading, lifting and handling;
- delivery, freight, courier and insurance charges;
- access equipment and site-entry requirements;
- costs of moving the Equipment to provide safe service access;
- costs arising from restricted working hours, parking or security requirements; and
- any customs, duties, taxes or cross-border expenses.

Pulse may require payment of estimated charges before arranging attendance, collection, return transport or work not covered by this Warranty.

15. DOWNTIME AND BUSINESS CONTINUITY

The Customer is responsible for maintaining appropriate operational contingency arrangements, including spare components or substitute equipment where uninterrupted business operations are important.

Pulse does not warrant that repairs, replacement components or technical attendance will be available immediately or within any particular period unless a service level has been expressly agreed in writing.

To the fullest extent permitted by law, Pulse is not liable for losses arising from Equipment downtime or unavailability, including:

- loss of revenue, profit or business;
- cancelled classes, appointments or memberships;
- refunds, credits or compensation given to the Customer's clients;
- loss of goodwill, reputation or opportunity;
- instructor, employee or contractor costs;
- rental or purchase of substitute equipment; or
- interruption of studio or business operations.

16. SAFETY, INJURY AND ASSUMPTION OF COMMERCIAL RESPONSIBILITY

The Customer acknowledges that Pilates and resistance-based exercise involve inherent risks of physical strain, falls and injury.

The Customer assumes responsibility for the operation and supervision of the Equipment after delivery and, where applicable, installation.

To the fullest extent permitted by law, Pulse is not liable for injury, death, loss or damage arising from:

- misuse or improper operation;
- incorrect exercise technique;
- inadequate instruction or supervision;
- failure to assess a user's physical condition or capability;
- failure to follow instructions or warnings;
- incorrect setup, adjustment or assembly not performed by Pulse;
- continued use after damage, abnormality or excessive wear becomes apparent;
- use outside the Equipment's intended purpose or limitations;
- unauthorised modification or repair;
- negligent or unsafe conduct by the Customer or any instructor, employee, contractor or user; or
- circumstances outside Pulse's reasonable control.

Nothing in this clause excludes liability to the extent that it cannot lawfully be excluded.

17. CUSTOMER INDEMNITY

To the fullest extent permitted by law, the Customer shall indemnify and hold Pulse, its directors, employees and representatives harmless against third-party claims, losses, damages, liabilities, costs and reasonable legal expenses arising from:

- the Customer's operation, control or supervision of the Equipment;

- injury to the Customer's members, clients, patients, guests, employees or contractors;
 - misuse, negligent use or unauthorised modification of the Equipment;
 - inadequate instruction, supervision, inspection or maintenance;
 - breach of these Terms by the Customer; or
 - any representation, promise or warranty made by the Customer to another person without Pulse's written authority,
- except to the extent that the claim is finally determined by a court of competent jurisdiction to have been directly caused by Pulse's negligence or breach of contract.

18. LIMITATION OF LIABILITY

To the fullest extent permitted by law, Pulse shall not be liable for any indirect, incidental, special, exemplary, punitive or consequential loss or damage.

Pulse shall not be liable for loss of profit, revenue, production, contracts, clients, memberships, use, opportunity, goodwill, anticipated savings, data or business interruption, whether characterised as direct or indirect loss.

To the fullest extent permitted by law, Pulse's total aggregate liability arising out of or relating to the Equipment, its supply, this Warranty or any related services shall not exceed the amount actually paid to Pulse for the specific item of Equipment giving rise to the claim.

The limitations in this clause apply regardless of whether the claim arises in contract, tort, negligence, misrepresentation, indemnity, statute or otherwise, but do not apply to liability that cannot lawfully be excluded or limited.

19. NO OTHER WARRANTIES OR REPRESENTATIONS

Except for the express limited warranty stated in these Terms and any term that cannot lawfully be excluded, Pulse excludes all other warranties, conditions, representations and guarantees, whether express, implied, statutory or otherwise, to the fullest extent permitted by law.

No employee, sales representative, installer, distributor, reseller, technician or other person is authorised to vary or extend this Warranty unless the variation is expressly confirmed in writing by an authorised representative of Pulse.

The Customer confirms that it has not relied on any oral statement, forecast, estimate or representation not expressly incorporated into a written agreement signed or approved by Pulse.

20. TRANSFER, RESALE AND RELOCATION

This Warranty applies only to the original Customer and is not transferable upon resale, assignment, leasing, subleasing or disposal of the Equipment without Pulse's prior written consent.

Relocation of the Equipment does not transfer the Warranty and may invalidate coverage where the Equipment is dismantled, transported, reinstalled or adjusted incorrectly.

The Customer must notify Pulse before any material relocation if the Customer wishes Pulse to assess or assist with the relocation.

21. FORCE MAJEURE AND SERVICE DELAYS

Pulse is not liable for delay or failure in inspection, repair, replacement, delivery or performance caused by circumstances beyond its reasonable control, including transportation disruption, shortage of materials or components, supplier delay, labour disruption, epidemic, government action, natural disaster, fire, flood, civil disturbance or interruption of utilities or communications.

Any estimated service, repair or replacement timeframe is indicative only unless Pulse expressly guarantees it in writing.

22. SPARE PARTS AND DISCONTINUED MODELS

Pulse will use reasonable endeavours to maintain a supply of spare parts for Equipment during its applicable warranty period.

Where an original component is unavailable, Pulse may supply a reasonably equivalent component that does not materially impair safe operation or intended functionality. Pulse is not liable for delay or failure caused by manufacturing or shipping delays, customs clearance, supplier failure or other circumstances beyond its reasonable control.

23. SEVERABILITY AND ENTIRE AGREEMENT

If any provision of this Warranty is held to be illegal, invalid or unenforceable, that provision shall be severed or limited to the minimum extent necessary, and the remaining provisions shall continue in effect.

This Warranty, together with the applicable quotation, invoice, sales order and any written terms expressly accepted by Pulse, constitutes the agreement concerning warranty coverage for the Equipment.

If there is an inconsistency, any specially negotiated written agreement signed or expressly approved by Pulse shall prevail over these standard Warranty Terms to the extent of the inconsistency.

24. PERSONAL DATA

Personal data provided in connection with a warranty claim, including contact details, delivery address and submitted photographs or videos, will be collected and processed by Pulse for purposes connected with assessing, administering and resolving the claim, in accordance with applicable personal data protection law and any privacy notice made available by Pulse.

25. GOVERNING LAW AND JURISDICTION

These Warranty Terms & Conditions shall be governed by and interpreted in accordance with the laws of Malaysia.

The parties submit to the non-exclusive jurisdiction of the courts of Malaysia in respect of any dispute arising from or relating to the Equipment, its supply or this Warranty. Nothing in this clause prevents proceedings before a court having mandatory jurisdiction in Malaysia or Singapore.

By ordering, accepting delivery of or using the Equipment, the Customer confirms that it has reviewed and accepted these Warranty Terms & Conditions.

Pulse Pilates Sdn. Bhd. (1569742-U)